

Aasha W/O Shivakumar Shivanagutti vs Shivakumar S/O Gurushiddappa ... on 12 October, 2023

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NC: 2023:KHC-D:12453
CP No. 100150 of 2023

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 12TH DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100150 OF 2023

BETWEEN:

AASHA
W/O. SHIVAKUMAR SHIVANAGUTTI,
AGED ABOUT 23 YEARS,
OCC. HOUSEHOLD,
R/O.#17, NEW BADAM NAGAR,
KESHWAPUR, HUBBALLI-580023.

...PETITIONER

(BY SRI. ABHISHEK L. KALLED, ADVOCATE)

AND:

SHIVAKUMAR
S/O. GURUSHIDDAPPA SHIVANAGUTTI
AGED ABOUT 34 YEARS,
OCC. AGRICULTURE,
R/O. PANCHAXARI NAGAR,
BULLA PLOT NO.106,
GADAG-582101.

...RESPONDENT

Digitally
signed by
BHARATHI S
Location:
HIGH
COURT OF
KARNATAKA

(NOTICE TO RESPONDENT IS SERVED)

THIS CIVIL PETITION IS FILED U/SEC.24 OF CPC, PRAYING TO, i) WITHDRAW THE PROCEEDINGS PENDING ON THE FILE OF PRINCIPAL JUDGE FAMILY COURT AT GADAG AND TRANSFER THE SAME TO THE COURT OF PRINCIPAL FAMILY COURT AT HUBBALLI BY ALLOWING THE PRESENT CIVIL PETITION. ii) GRANT SUCH OTHER ORDERS OR DIRECTIONS OR RELIEFS AS DEEMED FIT BY THIS HONBLE COURT IN THE INTEREST OF JUSTICE AND EQUITY.

THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The present petition is filed by the wife under Section 24 of the Code of Civil Procedure, 1908 (hereinafter referred to as 'CPC') seeking for transfer of M.C.No.81/2023 pending on the file of the Principal Judge, Family Court, Gadag to the Family Court, Hubballi.

2. The relevant facts for consideration of the present petition are that the marriage between the parties was solemnized on 26.11.2017 and the parties lived together for sometime in their matrimonial home. However, due to various reasons, from about the year 2020, the parties have been residing separately.

3. The respondent/husband filed M.C.No.77/2022 under Section 9 of the Hindu Marriage Act, 1955 on the file of the Principal Judge, Family Court, Gadag, for restitution of conjugal rights. The said proceedings were ordered to be transferred by this Court vide order dated 05.12.2022 passed in C.P. No.100152/2022 to the NC: 2023:KHC-D:12453 Principal Judge, Family Court, Hubballi. Subsequently, the respondent/husband has filed M.C.No.81/2023 under Section 13(1)(i)(ia)(ib) of the Hindu Marriage Act, 1955 on the file of the Principal Judge, Family Court, Gadag. Seeking transfer of the same, the present petition is filed.

4. Learned counsel for the petitioner submits that the petitioner is residing along with a three year old son born to the parties from the marriage and also with her aged mother. That the distance between the place of residence of the petitioner and Gadag is 60 km. Hence, he seeks for grant of relief as sought for in the petition.

5. In view of the contentions put forth by the petitioner and having regard to the fact that vide order dated 05.12.2022 passed in C.P.No.100152/2022, passed by this Court, M.C.No.77/2022 between the same parties was ordered to be transferred, it is just and expedient that the relief sought for in the present petition be granted.

6. Hence, the following order is passed:

ORDER

i) The petition is allowed;

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ii) M.C.No.81/2023 pending on the file of the Principal Judge, Family Court, Gadag shall stand transferred to the Court of the Principal Judge, Family Court, Hubballi;

iii) The parties shall appear before the transferee Court on 09.11.2023;

iv) The transferee Court, upon transfer, shall proceed further in accordance with law;

v) All contentions of the parties are left open.

SD/-

JUDGE Naa